

		Jury trial remains set for 12/14/26. Plaintiff to give notice.
17	Milman vs. Sunshine Behavioral Health Group, LLC	<u>Motion to Compel Arbitration and Stay Proceedings</u> The court GRANTS Defendants SUNSHINE BEHAVIORAL HEALTH GROUP, LLC and CHAPTERS CAPISTRANO, LLC’s motion to compel arbitration and stay action. On a motion to compel arbitration under the Federal Arbitration Act (“FAA”), the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “The trial court determines whether an agreement to arbitrate exists ‘using a three-step burden-shifting process.’ [Citation.] First, the party petitioning to compel arbitration must state ‘the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the [moving party] meets their initial burden, the burden of production shifts to the party opposing the [motion] to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need not prove that his or her purported signature is not authentic, but

must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.’ ” (*Id.*, at 992.)

Here, Defendants proffer an arbitration agreement that provides it is governed by the FAA and that broadly covers all employment-related claims, including disputes based on tort, contract, or statute, such as claims for discrimination, harassment, and/or retaliation, and therefore encompasses the claims asserted in this action. (Van Hooser Decl., ¶¶ 4, 8, Exhs. A-B.)

The court finds that Defendants met their initial burden by submitting a copy of the Arbitration Agreement purportedly signed by Plaintiff, which encompasses Plaintiff’s employment-related claims. (Van Hooser Decl., ¶ 8, Exhs. A-B.)

The burden therefore shifted to Plaintiff to produce admissible evidence to show a factual dispute and shift the burden back to Defendants regarding the agreement’s existence or authenticity.

Incomplete Agreement?

Here, Plaintiff first argues the Arbitration Agreement is unenforceable because the Arbitration Agreement is missing the caption and the beginning of the first paragraph, and as such, Defendants failed to comply with Rule 3.1330 of the California Rules of Court.

In response, Defendants demonstrate the omission was clerical and does not negate the existence or enforceability of the Arbitration Agreement. Defendants explain that the omission resulted from a scanning or photocopying error rather than an incomplete agreement. (Van Hooser Decl., ¶ 8, Exhs. A-B.) Van Hooser attests that he reviewed Plaintiff’s personnel file maintained in the ordinary course of business, which included the signed Arbitration Agreement bearing Plaintiff’s wet signature dated 8/31/21. (*Ibid.*) He further states that Defendants located the